

Court No. - 32

Case :- WRIT - C No. - 1470 of 2020

Petitioner :- Narendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jitendra Singh

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the Recovery Certificate dated 29.11.2019 issued by Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Khand-III, Khaga, District Fatehpur (respondent no. 4) for recovery of Rs.40,14,54/- (Rupees Four Lacs Fourteen Thousand Fifty Four only) from the petitioner in lieu of electricity dues.

(ii) Issue a writ, order or direction in the nature of mandamus directing the Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Khand-III, Khaga, District Fatehpur (respondent no. 4) to install electricity meter at the premises of petitioner forthwith and to provide a complete statement of account showing the actual due against the petitioner after adjusting the entire payments made by the petitioner and to recover the due amount from the petitioner in installments as fixed by this Hon'ble Court."

Heard learned counsel for the petitioner, Mr. Mahboob Ahmad, learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply

code, 2005 to ventilate his grievance.

The learned counsel for the petitioner has not been able to rebut the contention made by the learned counsel for the Electricity Department.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the concerned authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within a period of four weeks thereafter.

For a period of 6 weeks, the impugned recovery certificate dated 29.11.2019 issued by the respondent no. 4 shall remain in abeyance.

It is made clear that this Court has not expressed any opinion with regard to the merit of the case. The authority concerned shall consider the matter on its own merits.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 17.1.2020

Arun